YARD CLEARANCE AND TRIMMING, PLUS A RETURN VISIT TO PLANT

Service Agreement

Date of this transaction: _____ This is the date you sign. Your three business days to cancel run from it — see section 7.

1 · The parties

Contractor: Sixfold, LLC · 17890 Sierra Way, Monument, Colorado 80132 · (303) 915-1045 · Contact@SixfoldColorado.com

PROPERTY OWNER – FULL NAME(S)
Kara Rosenstrauch

PHONE

ADDRESS OF THE PROPERTY WHERE THE WORK WILL BE DONE
3846 Deboodt Ct

CITY, STATE, ZIP
Colorado Springs, CO

EMAIL

MAILING ADDRESS, IF DIFFERENT FROM THE PROPERTY

2 · The work

- [X] **Felling** — trees taken down
- [ ] **Rounds** — cut to firewood length
- [ ] **Stump grinding** — ground out below grade
- [ ] **Defensible space** around structures
- [ ] **Slash and chipping**
- [ ] **Fuel break / thinning**

Felling is ticked. Most of this job is yard and landscape work, which none of the categories above describes. The full scope is written below and it governs.

EXACTLY WHAT IS BEING DONE, AND WHERE ON THE PROPERTY

Two crew on site. The work comprises the following, carried out in whatever order conditions on the day allow: (1) mowing, trimming and edging approximately three-quarters of an acre of open ground, including the edges in against beds, walls and drive; (2) felling **three trees**, each under approximately ten feet, none over a roof, fence, utility line or drive, taken down whole and cut up on the ground; (3) limbing **thirteen trees** — **lower limbs raised to a height of approximately four feet, shaping only, no removal**; (4) pulling out **nine existing plants**, roots included, leaving the beds ready for new planting; (5) blowing down the drive and walks; (6) loading and hauling off the property — Sixfold truck and 8 × 8 × 4 trailer, approximately one and a half loads to a disposal site, tipping fees paid by Sixfold and included in the price at section 5; (7) walking the finished job with the owner before leaving, and putting right anything in this section not completed as described, while the crew and machines are still on site. **Second visit, included in the price at section 5 and at no extra charge:** once the owner's **six three-gallon Russian sage** are delivered, Sixfold returns on a date agreed at that time, digs the holes and sets the plants, using the plants and the soil supplied with the owner's delivery. **Sixfold supplies no plants and no soil under this agreement.** An itemised invoice and a written work record are supplied on completion. **Location:** the areas of the property walked and agreed at the site walk.

HOW THE MATERIAL TO BE REMOVED IS IDENTIFIED – FLAGGED, PAINTED, WALKED AND AGREED

The three trees to be felled, the thirteen to be limbed and the nine bed plants to be pulled are all walked and agreed with the owner before any work starts, and anything the owner wants kept is pointed out at that walk. **That walk, not a count written in advance, is what fixes the scope of this agreement.** No tree over approximately ten feet is felled under it.

3 · What is not included

Unless written below, this does **not** cover structural work of any kind (roofing, vents, siding, decking); reseeding or turf replacement; repair of irrigation, fencing or lawn; hauling non-green debris; work on land not identified as the owner's; or permit fees. *The template's usual exclusion of landscaping and replanting does not apply to this job — the mowing, edging, bed clearing and the planting are inside the scope at section 2 and are paid for at section 5.*

Also excluded for this job: grinding any stump — the stump of every tree felled remains, and grinding cannot be done the same day because Colorado 811 lists it as excavation and the utility locate takes three business days; felling any tree over approximately ten feet, or any tree over a structure or a utility line, which Sixfold will walk and quote separately; the plants and the soil they are planted in, both of which arrive with the owner's delivery and neither of which Sixfold supplies or warrants as to condition, quantity or survival; watering or aftercare of the plants at any stage; and any replacement planting if the delivery is short, wrong or damaged; removing anything that is not green waste — fencing, wire, metal, building material or household waste — which is set aside and stays with the owner unless a price for it is separately agreed.

ADDED TO THE SCOPE BY AGREEMENT

Nothing added. Scope is as described in section 2.

4 · What happens to the material

- [ ] Chipped on site and spread
- [ ] Piled to standard for pickup
- [ ] Cut to rounds and stacked — where: _____
- [X] **Hauled off site** and disposed of

Nothing stays on site: the cut material, the bed plants pulled and the clippings all leave on the trailer. If the owner wants anything set aside rather than hauled away, they say so before loading and it is left on the property.

5 · Price

TOTAL PRICE FOR THE WORK ABOVE	DEPOSIT, IF ANY, PAID TODAY	BALANCE
$ 1,500.00	$ 0.00 — none	$ 1,500.00

This is the whole price for the work in section 2. Travel is not billed. Nothing further is owed unless the owner signs a written change order under clause 9. **Payment schedule:** the first $750.00 is due on or before the first day of work and may be paid by electronic transfer, cash, or check made payable to **Sixfold, LLC**; the remaining $750.00 is due on completion of the work in section 2 other than the second planting visit — the balance is not held against that visit, which depends on the owner's delivery. **If this agreement is cancelled under section 7, every payment made is returned in full within ten business days.**

Owner's initials _____ Sixfold representative's initials _____ · The last two pages of this service agreement are the owner's two copies of the Notice of Cancellation and are part of it.

DATES, AND TERMS 1 TO 7 · THESE APPLY TO THE WORK DESCRIBED ON SHEET 1 OF THIS AGREEMENT

6 · Dates

CANCELLATION PERIOD ENDS (MIDNIGHT)	WORK BEGINS ON OR AFTER	ESTIMATED COMPLETION
Third business day after signing. A business day is any day except Sunday and federal holidays; Saturday counts.	On or after the cancellation deadline, unless the owner asks in writing to start sooner.	About one day on site, plus a short return visit to plant once the delivery arrives.

Dates are estimates. Weather, ground conditions and fire restrictions move them, and Sixfold will say so when they move.

Terms

1. **What Sixfold gives you with the job, whether or not you ask**
   A written scope of exactly what was done and where, and an itemised invoice.
2. **What this work does and does not do**
   This is yard and landscape work, including the removal and trimming of small trees. **It is not a defensible-space or wildfire mitigation treatment, it does not make a property fireproof, and it does not guarantee any outcome in a wildfire.** No one can promise that, and nothing in this agreement claims it.
3. **You confirm you can authorise the work**
   By signing, you confirm you are the owner of record of the property, or that you have the owner's authority to have this work done, and that no part of the area to be worked is on land belonging to someone else.
4. **Boundaries, buried lines and things we cannot see**
   You will identify the property boundaries. Sixfold will request public utility locates through Colorado 811 before any stump grinding or ground disturbance. **Private and unmarked lines are yours to point out** — irrigation, septic tanks and leach fields, wells, invisible pet fencing, low-voltage lighting, buried propane, and anything else not on a public locate. Sixfold is not responsible for damage to a line it was not told about and that a public locate did not mark.
5. **Clearing the way**
   Before the crew arrives, please move vehicles, secure pets and livestock, and keep people out of the work area while saws are running.
6. **HOA rules and permits**
   Where a covenant, HOA architectural rule, or local permit applies to removing trees, obtaining that approval is the owner's responsibility unless section 3 says otherwise in writing.
7. **Access and ground conditions**
   Equipment has to reach the work. Driveways, lawns and soft ground can rut or mark under machinery even when the crew is careful, and that kind of ordinary access marking is not damage under clause 11.

Owner's initials _____ Sixfold representative's initials _____ · Terms continue on sheet 3 of this agreement, where it is signed.

TERMS 8 TO 13 · YOUR RIGHT TO CANCEL · SIGNATURES

8. **If we find something once we start**
Hidden rot, a hazard lean, a hornet nest, a stump on a boulder — if a condition appears that changes the work, the crew stops and tells you before continuing.

9. **Changes to the work**
Any change to the scope or the price has to be written down and signed by both of us before that work is done. A verbal agreement to do extra work does not create a charge you owe.

10. **Paying**
The first $750.00 is due on or before the first day of work and may be paid by electronic transfer, cash, or check made payable to **Sixfold, LLC**. The remaining $750.00 is due when the work described in section 2 is complete. Every payment is refundable in full, within ten business days, if you cancel under section 7 — including any payment made before the cancellation period has run.

11. **Damage**
Sixfold is responsible for damage its crew causes by negligence in doing this work. Tell us within **14 days** of completion so we can look at it while the evidence is fresh. Sixfold is not responsible for pre-existing conditions, for the access marking described in clause 7, or for damage arising from a line or structure that was not disclosed under clause 4.

12. **Colorado law**
This agreement is governed by the law of the State of Colorado, and any dispute is brought in the county where the property is located.

13. **This document is the agreement**
What is written on the five pages of this service agreement is the whole agreement. Nothing said at the door changes it. A change is only effective if it is in writing and signed by both of us.

7 · Your right to cancel

You may cancel this agreement, for any reason or none, until midnight of the third business day after the date you signed it. A business day is any day except Sunday and federal holidays. You do not have to give a reason and there is no penalty or fee. **The last two pages of this service agreement are your two copies of the Notice of Cancellation** — send one to the address printed on it, or write to us any other way that says you do not want to go ahead. Everything you have paid comes back to you.

You, the buyer, may cancel this transaction at any time prior to midnight of the third business day after the date of this transaction. See the attached notice of cancellation form for an explanation of this right.

PROPERTY OWNER — SIGNATURE	PRINT NAME	DATE SIGNED

SIXFOLD REPRESENTATIVE — SIGNATURE	PRINT NAME	DATE

A signed copy of this agreement, and both Notice of Cancellation forms, are given to the property owner at the time of signing.

NOTICE OF CANCELLATION

_____ **(Date of transaction)**

You may CANCEL this transaction, without any Penalty or Obligation, within THREE BUSINESS DAYS from the above date.

If you cancel, any property traded in, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within TEN BUSINESS DAYS following receipt by the seller of your cancellation notice, and any security interest arising out of the transaction will be cancelled.

If you cancel, you must make available to the seller at your residence, in substantially as good condition as when received, any goods delivered to you under this contract or sale, or you may, if you wish, comply with the instructions of the seller regarding the return shipment of the goods at the seller's expense and risk.

If you do make the goods available to the seller and the seller does not pick them up within 20 days of the date of your Notice of Cancellation, you may retain or dispose of the goods without any further obligation. If you fail to make the goods available to the seller, or if you agree to return the goods to the seller and fail to do so, then you remain liable for performance of all obligations under the contract.

To cancel this transaction, mail or deliver a signed and dated copy of this Cancellation Notice or any other written notice, or send a telegram, to Sixfold, LLC, at 17890 Sierra Way, Monument, Colorado 80132 NOT LATER THAN MIDNIGHT OF _____.

I HEREBY CANCEL THIS TRANSACTION.

_____ DATE

_____ BUYER'S SIGNATURE

This form is completed by the Sixfold representative — seller name, seller address, date of transaction and the cancellation deadline — **before** it is handed over.

NOTICE OF CANCELLATION

_____ **(Date of transaction)**

You may CANCEL this transaction, without any Penalty or Obligation, within THREE BUSINESS DAYS from the above date.

If you cancel, any property traded in, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within TEN BUSINESS DAYS following receipt by the seller of your cancellation notice, and any security interest arising out of the transaction will be cancelled.

If you cancel, you must make available to the seller at your residence, in substantially as good condition as when received, any goods delivered to you under this contract or sale, or you may, if you wish, comply with the instructions of the seller regarding the return shipment of the goods at the seller's expense and risk.

If you do make the goods available to the seller and the seller does not pick them up within 20 days of the date of your Notice of Cancellation, you may retain or dispose of the goods without any further obligation. If you fail to make the goods available to the seller, or if you agree to return the goods to the seller and fail to do so, then you remain liable for performance of all obligations under the contract.

To cancel this transaction, mail or deliver a signed and dated copy of this Cancellation Notice or any other written notice, or send a telegram, to Sixfold, LLC, at 17890 Sierra Way, Monument, Colorado 80132 NOT LATER THAN MIDNIGHT OF _____.

I HEREBY CANCEL THIS TRANSACTION.

_____ DATE

_____ BUYER'S SIGNATURE

Both copies of this form are completed and handed to the property owner at the time of signing, together with a signed copy of the agreement.